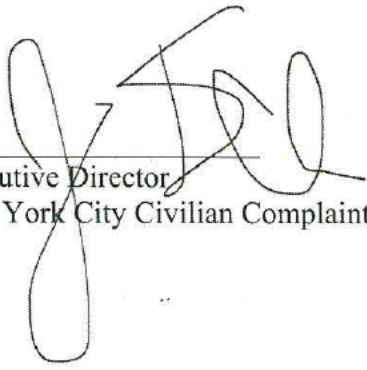


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, May 19, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23844 against PO Anthony Waite, Tax Registry No. 961434. The case was conferenced on April 26, 2022, before Assistant Deputy Commissioner of Trials Jeff S. Adler, who approved the negotiated penalty of forfeiture of two (2) vacation days, after a guilty plea.



Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

JUN 14 2023

POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23844

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, WAITE	FIRST ANTHONY	M.I. A	COMMAND DET SQD. BKLYN SOUTH-067
SHIELD NO. 9649	TAX REGISTRY NO. 961434	SOCIAL SECURITY NO.	DATE APPOINTED 01/06/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Anthony Waite, on or about August 13, 2019, at approximately 2130, while assigned to 075 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 2.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Anthony Waite, on or about August 13, 2019, at approximately 2130, while assigned to 075 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	PLEADED GUILTY	
3 . Police Officer Anthony Waite, on or about August 13, 2019, at approximately 2130, while assigned to 075 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	PLEADED GUILTY	
4 . Police Officer Anthony Waite, on or about August 13, 2019, at approximately 2130, while assigned to 075 PCT and on duty, in the vicinity of § 87(2)(b) Kings	PLEADED GUILTY	

Edward A. Cab 01/10/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Yael 6/14/23
POLICE COMMISSIONER DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.

2021-23844

BOOK & PAGE NO.

Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, WAITE	FIRST ANTHONY	M.I. A	COMMAND DET SQD. BKLYN SOUTH-067
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TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
County, abused his authority as a member of the New York City Police Department, in that he failed to provide individuals with a business card without sufficient legal authority.				

Edward A. Chen
FIRST DEPUTY COMMISSIONER

01/10/23
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)

[Signature]
POLICE COMMISSIONER

6/14/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 1, 2023

Re: CCRB Case No. 201907678 (Incident Date: August 13, 2019) involving Detective Anthony Waite, Tax No. 961434 (DADS No. 2021-23844)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty settlement regarding the disciplinary matter involving Detective Anthony Waite. The Police Commissioner agrees with the findings of the CCRB regarding Detective Waite's alleged misconduct. However, the Police Commissioner disagrees with the proposed penalty.

Detective Waite stopped several individuals at a shooting-prone location where only days earlier a shooting had occurred. Detective Waite inquired whether the individuals resided or were invited guests of a resident of the housing development where the stop occurred. After the brief interaction, Detective Waite left the location, but failed to provide his Right to Know Act Business Card, as required, before departing. This procedural misconduct must be addressed; however, the imposition of Charges and Specifications is not appropriate given the nature of the committed misconduct.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and issue a Schedule "A" Command Discipline.

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 13, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Detective Anthony Waite
Disciplinary Case No.: 2021-23844

Dear Commissioner Sewell:

I am writing in response to the letter from Inspector Lourdes Soto, dated June 1, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the charges and specifications in this matter and issue a Schedule “A” Command Discipline. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Inspector Soto’s notification.

Inspector Soto states that after reviewing the recommended penalty settlement regarding the disciplinary matter involving Detective Anthony Waite, the Police Commissioner agrees with the findings of the CCRB regarding the alleged misconduct, however, disagrees with the proposed penalty. The misconduct here is that Detective Waite stopped a group of young men which includes two named individuals and failed to provide them his Right to Know Act Business Card, as required, after he questioned them numerous times.

At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve this case today, and the respondents were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.